

23VECV02397 23VECV02397

County: los-angeles

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Case Number: 23VECV02397 Hearing Date: September 15, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Zeferino

Juarez Vazquez,

Plaintiff.

v.

Uber

Technologies, Inc., et al.

Defendants.

Case Number Department

23VECV02397 107

COURT'S [TENTATIVE]
ORDER RE:

OSC re

Contempt

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny.

I.

BACKGROUND

This action arises from an alleged bicycle versus automobile collision, which plaintiff Zeferino Juarez Vazquez ("Plaintiff") alleges occurred on or about June 2, 2021, in Panorama City, California. (Complaint, ¶ 19.)

On June 1, 2023, Plaintiff filed a complaint against defendants Uber Technologies, Inc., Raiser, LLC, Raiser-CA, LLC, Raiser-DC, LLC, Raiser-PA, LLC, Caeros O. Durias ("Defendant"), PV Holding Corp., and DOES 1 to 70, alleging the following causes of action: (1) Negligence/Negligence Per Se; (2) Negligence (Hiring, Training, Supervision and Retention); and (3) Negligent Entrustment.

On July 29, 2026, Defendant Caeros O. Durias filed a Motion for an OSC re: Contempt (CCP 1209). As of September 10, 2026, no opposition or reply has been filed.

II.

LEGAL

STANDARD

A contempt proceeding is commenced by the filing of an affidavit showing (1) the rendition of a valid order; (2) respondent's actual knowledge of the order; (3) respondent's ability to comply with the order; and (4) respondent's willful disobedience of the order. (CCP § 1211, 2nd para.) The affidavit frames the issues to be tried. (Reliable Enterprises, Inc. v. Sup.Ct. (People) (1984) 158 Cal.App.3d 604, 616. Each allegation (valid order, knowledge, ability to comply and willful disobedience) must be pleaded by factual statements; however the affidavit may be amended to correct technical insufficiencies if the respondent would not be prejudiced thereby. (Code of Civ. Proc., § 1211.5, subd. (b).) To establish willful disobedience, the affidavit should show that the alleged contemnor had personal notice of the contents of the order.

If the court is satisfied that the affidavit alleges sufficient grounds for contempt, it signs an “OSC re Contempt,” setting the date and time for a hearing. (Code of Civ. Proc., § 1211.) The court will then issue an order to show cause (OSC) re contempt. The OSC and affidavit must be served personally on the witness. (Cedars-Sinai Imaging Med. Group v. Sup.Ct. (Moore) (2000) 83 Cal.App.4th 1281, 1286-1287.) Full compliance with these procedures is mandatory, given that contempt proceedings are quasi-criminal. (People v. Gonzalez (1996) 12 Cal.4th 804, 816.)

“A contempt proceeding is punitive and separate from the cause out of which it arises...” (Van v. Language Line Services, Inc. (2017) 8 Cal.App.5th 73, 81.) “Although prosecuted under the title of the main action or proceeding, contempt is nevertheless a separate proceeding. And, although the proceedings are located in the Code of Civil Procedure with other “special proceedings of a civil nature” (Code of Civ. Proc., §1209, et seq.), they have long been held to be quasi-criminal in character.” (3 Witkin, Cal. Proc. (5th 3d. 2008), Actions, §69.)

III.

DISCUSSION

Defendant Durias moves for an order to show cause regarding contempt as to Plaintiff Vazquez.

Defendant Durias identifies two valid court orders: (1) the March 12, 2025 discovery order compelling Plaintiff’s attendance at deposition and payment of \$420 in sanctions and (2) the January 5, 2025 discovery order ordering Plaintiff to appear for deposition within 10 days and payment of \$1,260 in sanctions. (J. Ren Dec., ¶¶4-6.)

Defendant Durias establishes Plaintiff’s actual knowledge of the orders. Notice of the March 12, 2025 ruling was served on Plaintiff’s counsel on March 12, 2025. (Id. at ¶4, Ex. A.) Plaintiff’s counsel appeared at the January 5, 2026 hearing and waived notice of the January 5, 2026 order. (Id. at ¶6, Ex. B.) Defendant Durias also emailed Plaintiff’s counsel on February 4, 2026 notifying him that the deadline to pay for the \$1,680 in total sanctions was that day. (Id. at ¶8, Ex. C.) Defendant emailed again on July 24,

2026 informing Plaintiff's counsel again that Plaintiff had not yet paid the court-ordered sanctions. (Id. at ¶9, Ex. D.) Plaintiff ultimately appeared for deposition but the sanctions were not paid. (Id. at ¶10.)

Defendant

Durias establishes Plaintiff's failure to comply with the orders to pay monetary sanctions. (Id. at ¶¶7-10.) Willfulness is reasonably inferred from Plaintiff's failure to pay despite Defendant's repeated emails notifying Plaintiff of the outstanding sanctions.

However,

Defendant's affidavit does not attest to Plaintiff's ability to pay the monetary sanctions. Plaintiff's ability to pay for the sanctions is an essential element of a contempt proceeding, not an affirmative defense that Plaintiff must raise. (Koehler v. Superior Court. (2010) 181 Cal.App.4th 1153, 1170.) Ability to comply with the order must be pled and supported by Defendant's affidavit.

Defendant

Durias's Motion for an OSC re: Contempt is denied. Defendant's charging affidavit is insufficient.

IV.

CONCLUSION

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Defendant

Durias's Motion for an OSC re: Contempt is denied.

Dated: September 11, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court